



CHAPTER xiv.

An Act to confer further powers upon the mayor aldermen and burgesses of the borough of South Shields with respect to the running of trolley vehicles to confer further powers upon the Corporation with respect to their electricity undertaking to make further provision with regard to streets buildings sewers and drains and for the local government and improvement of the borough and for other purposes. [15th June 1945.]

WHEREAS the borough of South Shields (hereinafter referred to as "the borough") is a county borough under the government of the mayor aldermen and burgesses of the borough (hereinafter referred to as "the Corporation"):

And whereas under various Acts and Orders the Corporation own and are operating a road transport undertaking within and beyond the borough and were by the South Shields Corporation Act 1935 (hereinafter referred to as "the Act of 1935") and the South Shields Corporation (Trolley Vehicles) Order 1939 (hereinafter referred to as "the Order of 1939") authorised to provide maintain and equip trolley vehicles and use the same along certain routes all of which are now within the borough: ^{25 & 26 Geo. 5. c. xcvi.}

And whereas the Corporation to meet demands for further road transport facilities for purposes connected with the defence of the realm and the efficient prosecution of the present war made application to the Minister of War Transport under the Defence (General) Regulations 1939 made in pursuance of the Emergency Powers (Defence) Act 1939 for authority to enable the Corporation to provide and work trolley vehicles along certain additional routes within the borough and the said Minister has by the South Shields ^{2 & 3 Geo. 6. c. 62.}

Corporation (Trolley Vehicles) Order 1941 (S.R. & O. 1941 No. 1816) and the South Shields Corporation (Trolley Vehicles) Order 1942 (S.R. & O. 1942 No. 775) (hereinafter respectively referred to as "the Order of 1941" and "the Order of 1942") conferred upon the Corporation authority for the said purposes and accordingly the Corporation have provided and are working trolley vehicles along the routes so authorised:

And whereas it will be necessary for the Corporation to continue to work trolley vehicles along the said additional routes after the termination of the period of emergency which was the occasion of the passing of the Emergency Powers (Defence) Act 1939 and it is accordingly expedient to sanction and confirm the provision by the Corporation of the said routes and to authorise the Corporation to maintain and to continue to use trolley vehicles along the same or any part thereof respectively:

And whereas it is expedient to empower the Corporation to provide maintain and equip trolley vehicles and to use the same along certain further additional routes within the borough:

And whereas it is expedient to confer further powers upon the Corporation and enact further provisions with respect to their electricity undertaking:

And whereas it is expedient that further and better provision should be made with reference to streets and buildings sewers and drains and sanitary matters and otherwise for the local government and improvement of the borough and that the powers of the Corporation in relation thereto should be enlarged and extended:

And whereas it is expedient that the other provisions contained in this Act should be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

And whereas in relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act 1933 have been observed:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PART I.

PRELIMINARY.

1.—(1) This Act may be cited as the South Shields Corporation Act 1945.

PART I.
—cont.

(2) So much of the South Shields Corporation Act 1935 as relates to trolley vehicles the South Shields Corporation (Trolley Vehicles) Order 1939 and so much of this Act as relates to trolley vehicles may be cited together as the South Shields Corporation (Trolley Vehicles) Acts and Order 1935 to 1945.

2. This Act is divided into Parts as follows:—

Division of
Act into Parts.

Part I.—Preliminary.

Part II.—Trolley vehicles.

Part III.—Electricity.

Part IV.—Lands.

Part V.—Streets and buildings.

Part VI.—Sewers drains and sanitary provisions.

Part VII.—Sale of coke coal &c.

Part VIII.—Financial provisions and miscellaneous.

3. The Lands Clauses Acts except sections 127 to 132 of the Lands Clauses Consolidation Act 1845 and except the provisions with respect to the purchase and taking of lands otherwise than by agreement (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with and form part of this Act.

Incorporation
of Lands
Clauses Acts.
8 & 9 Vict.
c. 18.

4. Subject to the provisions of this Act and unless the subject or context otherwise requires the several words and expressions to which by the Acts wholly or partially incorporated with this Act or by the Public Health Act 1936 meanings are assigned have in this Act in relation to the relative subject-matter the same respective meanings And in this Act—

Interpretation.
26 Geo. 5. &
1 Edw. 8. c. 49.

“ The Act of 1929 ” and “ the Act of 1933 ” mean respectively the Local Government Act 1929 and the Local Government Act 1933;

19 & 20
Geo. 5. c. 17.

“ The Act of 1935 ” means the South Shields Corporation Act 1935;

“ The Order of 1939 ” means the South Shields Corporation (Trolley Vehicles) Order 1939;

“ The Order of 1941 ” means the South Shields Corporation (Trolley Vehicles) Order 1941 (S.R. & O. 1941 No. 1816);

“ The Order of 1942 ” means the South Shields Corporation (Trolley Vehicles) Order 1942 (S.R. & O. 1942 No. 775);

“ The borough ” “ the Corporation ” “ the surveyor ” “ the sanitary inspector ” “ the general rate ” “ the general rate fund ” “ the Minister ” “ trolley

PART I.
—cont.

vehicle " " the Corporation tramways " " the tramway undertaking " " the electricity undertaking " " daily penalty " " the Lands Clauses Acts " " the Order of 1891 " " the Act of 1896 " and " the Act of 1921 " have the meanings assigned to those expressions respectively by section 4 (Interpretation) of the Act of 1935;

" The emergency trolley vehicle routes " means the trolley vehicle routes in the borough and the turning points included therein respectively along which the Corporation were by the Order of 1941 and the Order of 1942 authorised to use trolley vehicles and which are described in Part I of the schedule to this Act;

" The new trolley vehicle routes " means the trolley vehicle routes in the borough described in Part II of the schedule to this Act;

" The trolley vehicle undertaking " means the trolley vehicle undertaking of the Corporation for the time being authorised;

" The electricity limits " means the limits for the time being of the Corporation for the supply of electricity;

45 & 46
Vict. c. 56.

" Electric line " has the meaning assigned to that expression by the Electric Lighting Act 1882;

" The gas company " means the Newcastle-upon-Tyne and Gateshead Gas Company.

PART II.

TROLLEY VEHICLES.

Confirmation
of powers
with respect
to emergency
trolley vehicle
routes.

5.—(1) The provision maintenance and equipment by the Corporation of the emergency trolley vehicle routes is hereby sanctioned and confirmed and the Corporation may as part of and for the purposes of the trolley vehicle undertaking—

(a) maintain and use trolley vehicles along the same; and

(b) retain hold and use all or any standards brackets conductors mains cables wires posts poles and any other apparatus and equipment placed or erected by the Corporation in under or over the surface of any streets or roads forming the emergency trolley vehicle routes.

(2) The Order of 1941 and the Order of 1942 are hereby repealed but without prejudice to the validity of anything done in pursuance thereof.

Power to use
trolley vehicles
upon new
routes.

6.—(1) The Corporation may provide maintain and equip (but shall not manufacture) trolley vehicles and may use the same upon the whole or any part of the new trolley vehicle

routes in addition to any routes upon which they are already authorised to use trolley vehicles.

PART II.
—cont.

(2) The Corporation may in the event of any parts of the intended roads mentioned in the descriptions of routes Nos. 18 19 and 20 in Part II of the schedule to this Act contained being constructed in positions other than those shown on the map referred to therein use trolley vehicles along the said parts thereof in the positions in which the same are constructed.

7. Subject to the provisions of this Act the provisions of Part II (Road transport) of the Act of 1935 as amended by this Act (except section 6 (Period for commencement of certain trolley vehicle services) thereof) in so far as those provisions relate to trolley vehicles trolley vehicle routes and matters incidental thereto and are capable of application shall extend and apply to and in relation to the emergency trolley vehicle routes and the new trolley vehicle routes as if those routes respectively were authorised by the said Part II.

Application of existing enactments to emergency and new trolley vehicle routes.

8. If the Corporation shall not have commenced to run trolley vehicles along any of the new trolley vehicle routes within five years from the passing of this Act or such extended time as the Minister of War Transport may upon the application of the Corporation allow the powers conferred by this Act with reference to the running of trolley vehicles along any of the new trolley vehicle routes along which the Corporation shall not have commenced to run trolley vehicles shall cease to be exerciseable.

Period for commencement of trolley vehicle services.

9. The powers of the Corporation under section 5 (Power to use trolley vehicles) of the Act of 1935 are hereby extended so as to enable the Corporation with the consent of the Minister of War Transport to use trolley vehicles upon any land acquired or appropriated by the Corporation for trolley vehicle purposes which the Corporation think it necessary or convenient to use for the purpose of providing a turning point.

Amendment of section 5 of Act of 1935.

10. Section 17 (Minister of Transport may authorise new routes) of the Act of 1935 shall have effect as if for the words “ (other than the streets and roads along and upon which they are by this Act authorised to use trolley vehicles) ” in subsection (1) thereof there were substituted the words “ not comprised in any trolley vehicle route for the time being authorised.”

Amendment of section 17 of Act of 1935

11.—(1) Section 137 (Lost property deposited may be sold if owner not found in twelve months) of the Act of 1896 shall be read and have effect as if the words “ or in any public vehicle ” were omitted therefrom.

As to lost property.

PART II.
—cont.20 & 21
Geo. 5. c. 43.Definition of
transport
undertaking.

(2) The Public Service Vehicles (Lost Property) Regulations 1934 made by the Minister of Transport in exercise of the powers vested in him under or by virtue of the Road Traffic Acts 1930 to 1934 and any regulations amending extending or in substitution for the said regulations shall extend and apply mutatis mutandis in respect of property found in the tramcars and trolley vehicles of the Corporation as if such tramcars and trolley vehicles respectively were public service vehicles as defined in the Road Traffic Act 1930.

12. As from the passing of this Act the tramway undertaking shall be known as the transport undertaking of the Corporation which shall comprise their tramway trolley vehicle omnibus and public service vehicle undertakings.

PART III.

ELECTRICITY.

Incorporation
of Electric
Lighting
(Clauses)
Act 1899.
62 & 63 Vict.
c. 19.

13. The provisions contained in the schedule to the Electric Lighting (Clauses) Act 1899 (with the exception of sections 83 and 84 of that schedule) as amended by the Electricity (Supply) Acts 1882 to 1936 are subject to the provisions of Part X (Financial provisions) of the Act of 1935 incorporated with and form part of this Act and the electricity undertaking and the Corporation in respect thereto shall (subject as aforesaid) be subject to those provisions and so much of the Order of 1891 as is inconsistent with those provisions is hereby repealed without prejudice to anything done or suffered thereunder:

Provided that section 20 of the schedule to the Electric Lighting (Clauses) Act 1899 in its application to the Corporation under this Part of this Act shall be read and have effect as if after the words "electric signalling communication" wherever they occur in the said section there were inserted the words "or electrical control of railways."

As to
electricity
limits.

14. Where under the provisions of any Act or Order relating to the Corporation or the electricity undertaking the electricity limits are bounded by or abut upon any road such limits shall be deemed to extend to the centre of the road.

Attachment
of brackets
&c. to
buildings and
bridges.
10 & 11 Vict.
c. 15.

15.—(1) Notwithstanding anything in section 7 of the Gasworks Clauses Act 1847 the Corporation may with the consent in writing of the owner of any building or any bridge over any street attach thereto such brackets electric lines and attachments (in this section called "attachments") as may be required for the purposes of the electricity undertaking.

(2) Where in the opinion of the Corporation any consent under subsection (1) of this section is unreasonably withheld

they may make complaint to a court of summary jurisdiction who may by order either allow the attachments subject to such terms (if any) as to compensation or rent or otherwise as they may think fit or disallow the attachments.

(3) The provisions of subsection (2) of this section shall not apply in relation to—

- (a) any building forming part of an aerodrome; or
- (b) any building which is designated in a list compiled or approved by the Minister of Town and Country Planning as being a building of architectural or historic interest; or
- (c) any building or bridge owned by any railway company or gas undertakers or by the Tyne Improvement Commissioners;

but if in the opinion of the Corporation any consent under subsection (1) of this section is unreasonably withheld in relation to any such building or bridge they may appeal in the case of a building or bridge owned by any railway company or by the Tyne Improvement Commissioners to the Minister of War Transport and in any other case to the Minister of Fuel and Power and the Minister of War Transport or the Minister of Fuel and Power as the case may be may by order either allow the attachments subject to such terms (if any) as to compensation or rent or otherwise as he thinks fit or disallow the attachments.

(4) Where any attachments have been affixed to a building or bridge under this section and the person who gave the consent or who was the owner when the order allowing the attachments was made ceases to be the owner of the building or bridge the subsequent owner may give to the Corporation notice in writing requiring them to remove the attachments and subject to the provisions of this subsection the Corporation shall within three months after the service of the notice remove the attachments:

Provided that the provisions of subsection (2) and subsection (3) of this section shall apply in relation to any such notice as they apply in relation to a refusal of a consent to the making of attachments.

(5) Where any attachments have been made under this section to any building or bridge the owner of the building or bridge may require the Corporation at their own expense temporarily to remove the attachments where necessary during any reconstruction or repair of the building or bridge.

(6) In this section—

The expression “owner”—

- (a) in relation to a building occupied under a tenancy for a term of years whereof five years or

PART III.
—cont.

more remain unexpired means the occupier of the building;

(b) in relation to a building occupied under any other tenancy means the person who is receiving the rack rent or who would receive the rack rent if the building were let at a rack rent;

(c) in relation to a building forming part of an aerodrome means (notwithstanding anything in this subsection) the person having control of the aerodrome;

The expression "rack rent" means in relation to a building a rent which is not less than two-thirds of the full net annual value of the building; and

The expression "aerodrome" means an aerodrome licensed pursuant to an order made under the Air Navigation Act 1920 or any Act amending replacing or consolidating the same.

10 & 11
Geo. 5. c. 80.

(7) The provisions of section 290 (Power of government departments to direct inquiries) of the Local Government Act 1933 shall apply to the determination by the Minister of War Transport or the Minister of Fuel and Power of any differences referred to them under this section.

As to exterior
lighting of
premises.

16. The Corporation may enter into and carry into effect contracts and agreements with the owners or occupiers of any premises within the electricity limits for the affording by the Corporation of additional illumination to the exterior of such premises and may for that purpose provide and maintain additional brackets upon any lamp standards lamp-posts or other apparatus belonging to them and used for public lighting.

Supply of
electricity
on special
terms.

17. Notwithstanding anything in any Act or Order relating to the Corporation or the electricity undertaking the Corporation on the one hand and any authority company body or person (other than authorised distributors), to whom the Corporation are authorised to supply electricity on the other hand may enter into and carry into effect contracts or agreements for or with respect to the supply of electricity by the Corporation to such authority company body or person and at such price and on such terms and conditions as may be agreed and the Corporation may supply electricity accordingly Provided that the Corporation shall not in making any such contract or agreement show any undue preference to any such authority company body or person.

Provisions
as to supply
of electricity
by agreement.

18. A consumer supplied with electricity by the Corporation under the terms of any agreement shall be deemed to be a person to whom the Corporation may be and are required

to supply energy within the meaning of section 30 of the schedule to the Electric Lighting (Clauses) Act 1899 and—

- (a) the provisions of that section shall apply to the supply afforded by the Corporation under such agreement; and
- (b) any failure on the part of the Corporation to supply energy to such consumer under the agreement shall not render them liable for any damages occasioned to such consumer by reason of such failure unless the same is caused by or in consequence of the wilful neglect or default of the Corporation:

Provided that—

- (i) the provisions of this section shall not operate to deprive any consumer of electricity supplied by the Corporation under the terms of any agreement existing at the passing of this Act of any right to which he would be entitled but for the said provisions; and
- (ii) nothing in this section shall apply in relation to any agreement which expressly excludes the application of this section.

19. The minimum charges per quarter which are specified in the Fourth Schedule to the Order of 1891 shall if so required by the Corporation be paid to them by the occupier of any premises connected to a distributing main of the Corporation in respect of each quarter of any year during the whole or any part of which quarter such premises are so connected whether electricity has actually been consumed on such premises or not during the currency of such quarter:

Minimum charges for electricity.

Provided that nothing in this section shall affect the operation of the Electricity Minimum Charges Orders and General Directions 1942 and 1944 or any modification thereof made and given by the Minister of Fuel and Power under Regulation 56 of the Defence (General) Regulations 1939.

20. The Corporation may levy and recover such charges as they think fit for taking the reading of any electricity meter fixed in a house which is either in whole or in part let furnished at the request of and for the convenience of consumers at times other than those of the periodical readings. Provided that such charges shall not exceed the sum of two shillings and sixpence for each reading.

Charges for special readings of electricity meters.

21. The Corporation may if they think fit make an allowance by way of discount not exceeding five per centum on all sums of money due to the Corporation for the supply of electricity from any person who pays the same within such time of the demand thereof as the Corporation think

Discounts for prompt payment.

PART III.
—cont.

fit to prescribe in that behalf and notice to that effect shall (if and so long as the Corporation shall allow such discount) be endorsed on every demand note in respect of such charges. Provided that the Corporation shall make the same allowance to all consumers under similar conditions.

As to charges
for fittings.

22. If the Corporation commence proceedings for the summary recovery of a sum due for the supply of electricity any other payment due to them for the sale hire connection repair or maintenance of meters apparatus or fittings supplied by them for or in connection with the consumption or use of electricity or in respect of the provision of materials and work in connection with the consumption or use of electricity may be included in the same summons and may be recovered summarily as a civil debt provided that the sum so included as aforesaid does not exceed twenty pounds in any one summons.

Sale of
electrical
apparatus let
on hire.

23. If any owner or occupier of premises who has hired from the Corporation any electric line fitting apparatus or appliance (in this section referred to as "fittings") sells or leaves the premises in which such fittings are fixed or fastened and the next owner or occupier of those premises desires to purchase instead or to hire those fittings the Corporation may notwithstanding anything contained in the Electricity (Supply) Acts 1882 to 1936 sell those fittings to such next owner or occupier upon such terms and conditions as may be agreed between him and the Corporation.

Power to lay
down connec-
ting lines in
certain cases.

24.—(1) For the purpose of supplying electricity to any premises to which the Corporation are for the time being authorised to supply electricity the Corporation may lay down place maintain and use electric lines in order to connect such premises to a service line already laid by the Corporation for the purpose of affording a supply of electricity to adjoining premises and for that purpose may cut or otherwise interfere with any party wall or fence to such premises and adjoining premises:

Provided that the Corporation shall not cut or otherwise interfere with any party wall or fence to a building licensed for cinematograph exhibitions in such a way as to contravene the conditions of the licence relating to such building.

(2) In relation to any such electric lines as aforesaid the Corporation shall have the powers and be subject to the provisions so far as applicable of sections 17 18 20 and 77 of the schedule to the Electric Lighting (Clauses) Act 1899 incorporated with this Act.

(3) The provisions of section 14 of the said schedule so far as they relate to the Postmaster-General shall extend

and apply to the laying down or construction by the Corporation of any electric line under the provisions of this section.

PART III.
—cont.

(4) The provisions of this section shall not apply to any premises (not being a dwelling-house) belonging to the London and North Eastern Railway Company.

25. In any case in which the proper and efficient supply of electricity necessitates the substitution of a new electric line for an electric line situate in or upon the private property of a consumer the Corporation after giving forty-eight hours' notice in writing to the occupier or if there be no occupier then to the owner or lessee of any house building or land in which such electric line is laid or fixed may enter such house building or land between the hours of nine in the morning and four in the afternoon or with the authority in writing of a justice at any other time for the purpose of effecting such substitution repairing all damage caused by such entry or substitution:

Power of
entry for
substitution
of electric
lines.

Provided that the Corporation shall not exercise the powers of this section in respect of any premises which form part of the railway of the London and North Eastern Railway Company except with the consent of such company which consent shall not be unreasonably withheld Any question as to whether any such consent is unreasonably withheld shall be determined by the Electricity Commissioners.

26.—(1) The powers conferred on the Corporation by section 24 of the Electric Lighting Act of 1882 of entering premises shall be extended as follows:—

Further
powers as to
entry upon
premises.

- (a) The premises which may be entered shall include all premises in the electricity limits in which electric fittings are being or have been installed with a view to taking a supply of electricity from the Corporation;
- (b) The purposes for which the premises may be entered shall include the following purposes that is to say the inspection of all meters and electric fittings on the premises whether belonging to the Corporation or not the ascertainment of whether or not there is or has been any contravention of any of the Acts or Orders applying to the Corporation or of any regulation or byelaw made thereunder and (where the Corporation are authorised under the provisions of any such Act Order regulation or byelaw to cut off the supply of electricity to the premises) the cutting off of such supply.

The Corporation shall not have any power of entry into any such premises except through an officer duly authorised by

PART III.
—cont.

the Corporation who shall if so required produce his authority.

(2) Any person who shall refuse to admit any such officer of the Corporation to any premises which they are entitled to enter in pursuance of the said section 24 as amended by this section or shall hinder any such officer from entering any such premises or from exercising the powers conferred by the said section as so amended shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

(3) For the purposes of this section "electric fittings" includes electric lines meters accumulators fittings works and apparatus for the supply of electricity.

(4) The provisions of this section shall not apply to or in respect of any building or premises (not being a dwelling-house) belonging to the London and North Eastern Railway Company and used for the purposes of their railway and forming part of any station or goods depot.

Further
provisions
as to way-
leaves.

9 & 10
Geo. 5. c. 100.

27. The Corporation may agree with the owner or occupier of any land across which any electric line has been placed or across which it is intended by the Corporation to place any such line in either case under the provisions of section 22 of the Electricity (Supply) Act 1919 that a term or condition upon which they may place the said line across such land shall be the payment by the Corporation to such owner or occupier of a sum of money in gross and the payment of such sum of money shall if so agreed between the parties secure for the Corporation as against such owner or occupier (as the case may be) and his executors administrators successors and assigns the right to retain and maintain such line across the said land for such period as may be agreed.

For deter-
mining stand-
by supplies.
12 & 13
Geo. 5. c. 46.

28. If any question shall arise under section 23 of the Electricity (Supply) Act 1922 as to whether a supply of electricity is demanded or received for the purpose of a stand-by supply only or as to whether a supply of electricity or of gas steam or other form of energy is in use or ready for use for the purposes for which a stand-by supply of electricity is required the same shall in default of agreement be determined by arbitration in manner provided by the Electricity (Supply) Acts 1882 to 1936.

As to use of
transformers.

29. Where a separate transformer is provided at the expense of the Corporation for the purpose of affording a supply of electricity to any consumer the Corporation may subject to the provisions of the agreement under which the transformer was provided use such transformer for the purpose of affording a supply of electricity to other consumers so long as such use does not prejudice or interfere with the supply for

which such transformer was originally provided so however that the powers conferred by this section shall not enable the Corporation to extend the transformer so provided beyond the limits of the original site thereof.

PART III.
—cont.

30.—(1) In this section—

“specifically supplied” means supplied by the Corporation through a meter fixed for the purpose of ascertaining the cost of the supply to a consumer of electricity agreed to be supplied to him for a particular purpose only; Use for one purpose of electricity supplied for another purpose.

“higher rated purpose” means any purpose for the supply of electricity for which the Corporation are for the time being charging at a rate or upon terms higher than the rate or terms at or upon which the Corporation are for the time being charging for the supply of electricity for any purpose for which electricity is being specifically supplied to a consumer;

“last quarterly reading” means the quarterly reading of a consumer’s meter or meters that shall take place next before the date when the Corporation shall sue for any penalty under this section.

(2) Any consumer who without the consent in writing of the Corporation shall use or suffer to be used (whether after transformation or conversion or not) for a higher rated purpose any electricity specifically supplied to him shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings and shall in addition be liable to pay to the Corporation compensation calculated in accordance with this section.

(3) For the purpose of calculating the compensation to be paid to the Corporation under this section there shall be ascertained—

(a) the sum which the consumer would have been liable to pay to the Corporation for electricity supplied to him during the year expiring on the date of the last quarterly reading if all such electricity had been supplied to him for the higher rated purpose for which any electricity specifically supplied to him shall have been used in contravention of the provisions of this section; and

(b) the sum which the consumer would have been liable to pay to the Corporation for all electricity supplied to him during the like period if the electricity specifically supplied to him during that period had been used for the purpose for which it was specifically supplied;

PART III.
—cont.

and the amount of the compensation to be paid to the Corporation under this section shall be the difference between the two sums ascertained as aforesaid.

(4) If in any proceedings for the recovery of compensation under this section the defendant shall prove that he has used electricity or suffered electricity to be used in contravention of the provisions of this section for a less period than a year the court may reduce proportionately the amount of the compensation calculated in accordance with the provisions of subsection (3) of this section.

9 Edw. 7. c. 34. (5) The provisions of section 18 (Power to refuse to supply electrical energy in certain cases) of the Electric Lighting Act 1909 shall apply to any person whom the Corporation have reasonable grounds for believing to be using or suffering to be used for a higher rated purpose electricity specifically supplied to him.

Power to
refuse to
supply
electricity
in certain
cases.

31.—(1) The Corporation may cut off and refuse to supply electricity to any person whose payments for the supply of electricity or meter rent in respect of the supply thereof are for the time being in arrear (not being the subject of a bona fide dispute) whether any such payments be due to the Corporation in respect of a supply to the premises in respect of which such supply is being given or is demanded or in respect of other premises.

(2) Section 74 (Power to refuse to supply electric energy in certain cases) of the Act of 1921 is hereby repealed.

Protection
of seals &c.
belonging to
Corporation.

32. The provisions of section 38 (Penalty for injuring meters) of the Gasworks Clauses Act 1871 incorporated with the Electric Lighting Act 1882 shall apply to any person who wilfully fraudulently or by culpable negligence injures or detaches or suffers to be injured or detached any of the sealing or locking devices attached to any sealed or locked receptacle meter or apparatus inserted by the Corporation in any electric line within a consumer's premises or opens or suffers to be opened any such sealed or locked receptacle meter or apparatus.

Interference
with works
with intent
to cut off
supply of
electricity.

33.—(1) Any person who unlawfully and maliciously cuts injures or tampers with any electric line or work of the Corporation with the intent to cut off or injuriously affect the supply of electricity by the Corporation shall be guilty of a misdemeanour and be liable on conviction on indictment to imprisonment for any term not exceeding two years but nothing in this section shall exempt the person from any proceeding for any offence which is punishable under any provision of the Electricity (Supply) Acts 1882 to 1936 or of the Electric Lighting (Clauses) Act 1899 or under any other Act

or the common law but so that no such person be punished twice for the same offence.

PART III.
—cont.

(2) The Electric Lighting Act 1882 in its application to the Corporation shall be read and have effect as if section 22 of the said Act were hereby repealed.

34. If any person without lawful excuse (the proof whereof shall lie on him) shall wilfully interfere with any electric line or other work or apparatus used for or in connection with the supply of electricity by the Corporation or do or cause to be done anything which is calculated to interfere with or damage any such work or apparatus he shall for every such offence (without prejudice to any other liability or cause of action which may arise out of or by reason of such act) be liable to a penalty not exceeding five pounds.

Penalty for
interference
with works.

35. Any person who for the purpose of operating any prepayment meter through which electricity is supplied by the Corporation to him or to premises occupied by him frequently or habitually uses any thing other than the coin of the realm by which such prepayment meter is designed and intended to be operated shall be liable to a penalty not exceeding forty shillings.

Penalty for
misuse of
prepayment
meters.

36. The provisions of section 59 of the Rating and Valuation Act 1925 relating to the sending or service of demand notes shall apply to demand notes for any charges made in connection with the electricity undertaking.

Service of
electricity
demand
notes.
15 & 16
Geo. 5. c. 90.

PART IV.

LANDS.

37.—(1) Notwithstanding anything in the Lands Clauses Acts to the contrary the Corporation may retain and hold and use for such time as they may think fit or may sell lease exchange or otherwise dispose of in such manner and for such consideration and on such terms and conditions as they may think fit and in consideration either of the execution of works or of the payment of a gross sum or of an annual rent or of any payment in any other form any lands or any interest therein acquired by them under this Act or any general or local Act for the time being in force in the borough (other than the Housing Act 1936 or any Act repealed by that Act) and may sell exchange or dispose of any rents reserved on the sale lease exchange or disposition of such lands or interest therein and may make do and execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition and on any exchange may give or take any money for equality of exchange:

Retention
and disposal
of lands.

26 Geo. 5. &
1 Edw. 8. c. 51.

PART IV.
—cont.

Provided that the Corporation shall not without the consent of the Minister sell lease exchange or otherwise dispose of any such lands or any interests therein at a price or rent or for a consideration of a value less than the current market value of such lands or interests but a purchaser or lessee shall not be concerned to inquire whether the consent of the Minister is necessary or has been obtained:

Provided also that nothing in this section shall be taken to dispense with the consent of any government department to any sale lease appropriation or other disposition of any lands of the Corporation other than lands acquired under any local Act applying to the Corporation in any case in which such consent would have been required if this Act had not been passed.

(2) Nothing in this section shall release the Corporation or any person purchasing or acquiring any lands from them under this section from any rents covenants restrictions reservations terms or conditions made payable by or contained in any conveyance lease or other deed or instrument by which any such lands were or may hereafter be conveyed or leased to or otherwise acquired by the Corporation or any person from or through whom the Corporation may have derived or may hereafter derive title to the same but all such rents covenants restrictions reservations terms and conditions shall remain and be of as full force and effect and may be recovered exercised enjoyed and enforced in the like manner and to the same extent as if this Act had not been passed.

Acquisition
of land for
electricity
substations
and for
transport
undertaking.

38.—(1) The Corporation may be authorised to purchase compulsorily land—

- (a) within the electricity limits for the purpose of the erection thereon in pursuance of the statutory powers for the time being relating to the electricity undertaking of a station for transforming converting or distributing electricity; and
- (b) within the borough for any of the purposes of the transport undertaking;

by means of an order made by the Corporation and submitted to the appropriate Minister and confirmed by him in accordance with the provisions (so far as they are applicable) of section 161 of the Act of 1933 and of the Sixth Schedule to that Act and the provisions of that section and schedule with any necessary modifications and also where applicable of section 174 of the Act of 1933 shall have effect for the purposes of this section with the substitution of the appropriate Minister for the Minister:

Provided that the restrictions contained in paragraphs (a) (b) and (c) of section 179 of the Act of 1933 shall apply to

any such order and that the provisions of section 162 of that Act shall have effect with respect to the validity of any such order:

PART IV.
—cont.

Provided further that anything which under the said provisions of the Act of 1933 has to be prescribed shall for the purposes of this section be prescribed by the appropriate Minister in such manner as he may think fit.

(2) Nothing in this section or in any order made thereunder shall authorise the compulsory acquisition of any land which at the date of the order forms part of any park garden or pleasure ground or is otherwise required for the amenity or convenience of any house or which at that date forms part of any premises occupied as a factory within the meaning of the Factories Act 1937 or which has been acquired for the purposes of any such factory or which at that date forms part of any land which is in use as an aerodrome licensed pursuant to an order made under the Air Navigation Act 1920 or any Act amending replacing or consolidating the same. 1 Edw. 8. &
1 Geo. 6. c. 47.

(3) Nothing in this section or in any order made thereunder shall release the Corporation from any restrictions or conditions imposed on them by or under any general or local Act in force at the date of the passing of this Act.

(4) If an order is made under this section for the purchase of land which any person has specific statutory power to acquire compulsorily such person shall be entitled to make objection to the appropriate Minister to the confirmation of such order and any such objection if duly made shall for the purpose of the said section 161 as applied by this section be deemed to have been made by a person upon whom notice is required to be served.

(5) In this section the expression "the appropriate Minister" means as regards an order authorising the compulsory purchase of lands for the purpose mentioned in paragraph (a) of subsection (1) of this section the Minister of Fuel and Power and as regards an order authorising the compulsory purchase of land for the purposes mentioned in paragraph (b) of that subsection the Minister of War Transport.

39. The powers of the Corporation of purchasing lands by agreement shall be deemed to extend to and to authorise the purchase by the Corporation by agreement of any lands which they may think it desirable to purchase in order to provide substituted sites or facilities for any persons whose lands may be acquired by them for the purposes of this Act. Purchase of
lands for
exchange.

PART V.

STREETS AND BUILDINGS.

Stopping
up and
diversion of
highways.

40.—(1) Subject to the provisions of this section a court of summary jurisdiction if satisfied on the application of the Corporation that a highway within the borough is unnecessary may by order authorise the stopping up thereof and if so satisfied that a highway within the borough can be diverted so as to make it nearer or more commodious to the public may by order authorise it to be so diverted.

(2) Any such application or order may be made with respect to any length of a highway and in the subsequent provisions of this section any reference to a highway shall be construed as a reference to that length thereof to which the application or order relates.

(3) No order shall be made under subsection (1) of this section unless the court is satisfied that notice of the intention to make the application specifying the time and place at which it is to be made and the order which will be asked for and embodying a plan showing what will be the effect of the order asked for—

(a) has at least twenty-eight days before the date on which the application is made been served either personally or by registered post on the owners or reputed owners and the occupiers of all land abutting on the highway and (when the application relates to a classified road as defined in the Act of 1929) on the Minister of War Transport and the county council of the administrative county of Durham and also (where any mains pipes valves or other works of the gas company are laid or placed in the highway) on the gas company; and

(b) has during at least twenty-eight days been exhibited in such manner and in such positions on or near the highway as are reasonably sufficient for notifying persons using the highway of the application;

and that a similar notice (except that there may be substituted for the plan a statement of the place where such a plan can be inspected at all reasonable hours without payment) has been inserted once at least in each of four successive weeks in a local newspaper circulating in the borough.

(4) On the hearing of such an application the Corporation and any person who is interested in land abutting on or served by the highway or uses the highway or is otherwise aggrieved shall have a right to be heard and an appeal against the decision of the court may be brought to quarter sessions

either by the Corporation or by any such person as aforesaid who was or claimed to be heard by the court.

PART V.
—cont.

(5) For the purposes of the provisions of the Summary Jurisdiction Act 1879 as amended by the Summary Jurisdiction (Appeals) Act 1933 with respect to appeals to quarter sessions—<sup>42 & 43
Vict. c. 49.
23 & 24
Geo. 5. c. 28.</sup>

(a) a refusal by a court of summary jurisdiction to make an order under this section shall be deemed to be an order;

(b) in a case where more than two persons were heard or claimed to be heard in opposition to an application under this section it shall be sufficient if a notice of appeal against a refusal to make an order upon that application is served upon any two of those persons in addition to the clerk to the court of summary jurisdiction but any of those persons, whether served with such a notice or not may appear at quarter sessions as respondents to the appeal;

(c) any appeal under this section whether against an order or against a refusal to make an order shall be in the nature of a rehearing.

(6) Every order made under this section shall have annexed thereto a plan signed by the chairman of the court and shall be binding on all persons whatsoever.

(7) Provided that—

(i) nothing in this section shall authorise the diversion over any land of any highway unless the written consent of every person having a legal interest in that land is produced to and deposited with the court; and

(ii) an order under this section authorising the diversion of a highway shall not authorise the stopping up of any part thereof until the new part to be substituted for the part stopped up has been completed to the satisfaction of two justices and a certificate to that effect signed by them has been transmitted by their clerk to the clerk of the peace for the administrative county of Durham.

(8) Where an order is made by a court of summary jurisdiction under this section authorising the stopping up or diversion of a highway the clerk of the court shall forthwith transmit the order to the said clerk of the peace together if the order be for diverting a highway with the written consents produced to the court and the said clerk of the peace shall enrol any documents so transmitted to him and any certificates transmitted to him under subsection (7) of this section among the records of quarter sessions.

PART V.
—cont.

(9) Where any highway is diverted in accordance with an order made under this section the substituted highway shall be repairable by the person (if any) by whom the original highway was repairable,

(10) Any application or order under this section—

(a) may include two or more highways which are connected with each other;

(b) may relate to the stopping up or diversion of a highway for the purposes of all traffic or subject to the reservation of a bridle way or footway.

(11) The provisions of this section shall be in addition to and not in derogation of any other provisions relating to the stopping up and diversion of highways.

Adjustment
of boundaries
of estates.

41.—(1) For the purpose of securing the proper laying out or development of any estate or lands in respect of or in connection with which plans for any new street (including in that expression the widening of an existing street or the widening or adaptation of a road footpath or way so as to form a new street) are submitted to the Corporation for approval the Corporation may require that provision shall be made for adjusting and altering the boundaries of any such estate or lands or any lands adjacent or near thereto and for effecting such exchanges of land and the removal imposition or other regulation of covenants restrictions and conditions attaching to such lands as may be necessary or convenient for such purposes and the provision so to be made and the terms and conditions upon which such provision is to be made shall failing agreement between the Corporation and the respective persons interested in such estate or lands be determined on the application of the Corporation or any such person by an arbitrator to be appointed by the Minister and the Corporation may for securing the execution of any such purposes agree to pay and may and shall pay to any such person or persons such sums as may be agreed upon or in default of agreement be determined by arbitration as aforesaid:

Provided that the payment of money by any such person shall not be made a term or condition of any award made under this section otherwise than with his consent.

(2) Any award made under the provisions of this section shall operate to effect any adjustment or alteration of boundaries or exchange of lands or the removal imposition or other regulation of covenants restrictions and conditions attaching to such lands which may be provided for by such award or be necessary for giving effect thereto and shall be duly stamped accordingly and the costs charges and expenses of any such arbitration shall unless and except in so far as

the award shall otherwise provide be borne and paid by the Corporation.

PART V.
—cont.

(3) Any lands or moneys received by any person in or in respect of any adjustment or alteration of boundaries or exchange of lands under the provision of this section shall be held by such person subject to the same trusts (if any) and any lands so received shall also be held subject to the same covenants restrictions and conditions (if any) so far as the same are applicable as the lands exchanged therefor. Where any such covenants restrictions or conditions shall in any case be agreed to be inapplicable or be determined by the arbitrator to be inapplicable the same shall be indicated in any agreement or award made under the provisions of this section.

(4) For the purpose of the adjustment or alteration of the boundaries of any such estate or lands as aforesaid the Corporation may themselves purchase any land and may sell or lease the land so purchased in whole or in part at such time or times at such price or prices and on such conditions as they may think fit or may appropriate the same for any public purpose approved by the Minister and until such sale or appropriation may occupy manage or let the same or any part thereof in such manner as the Corporation may think reasonable.

(5) The provisions of this section shall not apply to any estate or lands belonging to the gas company and authorised to be used for the manufacture or storage of gas or the working up or storage of residual products.

42.—(1) Before any person shall erect on any land in the borough a retaining wall of greater height than six feet abutting on or adjacent to or within twelve feet of any street he shall submit to the Corporation plans sections and specifications thereof and no such wall shall be erected except in accordance with such plans sections and specifications as may be approved by the Corporation. As to erection of retaining walls.

(2) Any person who shall erect a retaining wall contrary to the provisions of this section or any owner who after erection shall after reasonable notice in writing from the Corporation requiring him so to do fail to put such wall in proper repair shall without prejudice to any other right or remedy of the Corporation be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

(3) The provisions of this section shall not extend or apply to any land belonging to or which may hereafter be acquired by a railway company or the gas company or to any retaining wall erected thereon.

PART V.

—cont.

Restrictions
on advertise-
ment
hoardings.

43.—(1) For the purpose of preserving the amenities of the borough it is hereby enacted that it shall not be lawful after the passing of this Act to erect in or within fifteen feet of any street in the borough any hoarding or similar structure to be used either partly or wholly for advertising purposes to a greater height than twelve feet above the level of such street without the consent of the Corporation and such consent may be given subject to such conditions as to the submission of a plan and elevation and as to the dimensions and maintenance of such hoarding or similar structure as the Corporation may determine.

(2) Any person acting in contravention of this section or of the terms and conditions (if any) of such consent shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

(3) The consent of the Corporation under this section shall not be required for a hoarding or similar structure erected within any railway station or upon any property of a railway company for the purposes of such railway company except in so far as such hoarding or similar structure fronts upon a street repairable by the inhabitants at large.

As to erection
of hoardings
&c. at street
corners.

44.—(1) Before placing or erecting in the borough any hoarding wall (not being a wall forming part of the structure of a permanent edifice) or fence at or within a distance of ten yards from the corner of any street the person proposing to place or erect such hoarding wall or fence shall give notice of his intention so to do to the Corporation and such notice shall be accompanied by plans and particulars of the hoarding wall or fence proposed so to be placed or erected.

(2) If the placing or erection of such hoarding wall or fence would constitute a danger to the traffic in the streets upon adjoining or near to which the same is proposed to be placed or erected by obstructing the view of any foot passenger or the driver of any vehicle in a street of vehicular or pedestrian traffic the Corporation may within one month of the receipt of the said notice prohibit such placing or erection or may allow the same subject to such conditions or modifications of the said plans and particulars as they may think fit. If within one month of the receipt of the said notice the Corporation shall not have prohibited such placing or erection or allowed the same subject to a condition or to a modification of such plans or particulars they shall be deemed to have allowed such placing or erection.

(3) Any person who places or erects any hoarding wall or fence in contravention of the provisions of this section shall

be liable to a penalty not exceeding five pounds and the Corporation may remove the hoarding wall or fence so placed or erected and may recover the expense incurred by them in so doing from such person.

(4) For the purposes of this section the corner of any street shall be deemed to be the point at which the frontage or boundary line of that street (if necessary continued in a straight line) intersects the frontage or boundary line of any other street (if necessary similarly continued).

(5) The provisions of this section shall not apply to any part of a street with respect to which restrictions have been imposed under section 4 of the Roads Improvement Act 1925 or by section 1 or section 2 of the Restriction of Ribbon Development Act 1935.

15 & 16
Geo. 5. c. 68.
25 & 26
Geo. 5. c. 47.

45.—(1) The Corporation may by notice in writing require—

Repair of
hoardings
&c.

- (a) the owner of any hoarding wall or similar structure used for advertising purposes in the borough to maintain the same in good order and condition;
- (b) the person using any hoarding wall or similar structure for advertising purposes in the borough to maintain any advertising matter thereon in good order and condition.

(2) If such owner or other person shall neglect or refuse to comply with any such notice the Corporation may carry out such alterations or repairs as may be reasonably necessary and recover summarily as a civil debt from such owner or other person any expense incurred by them in so doing.

46.—(1) Every person who intends to lay out a new street within the borough shall in addition to the information required to be supplied to the Corporation by virtue of any enactment or byelaw with respect to streets and buildings from time to time in force in the borough distinctly define and mark on a plan drawn to such scale as the Corporation may require and to be prepared and submitted by such person to the Corporation for their approval the proposed line of frontage of any house or building to be erected in or fronting such street (in this section called "the building line") and the Corporation shall be deemed to have approved any building line unless within one month after the date of submission thereof they shall have signified to the person submitting the same their disapproval thereof.

Frontage
line in new
streets.

(2) The Corporation may also prescribe the building line to be observed in those parts of any street (not being a highway maintainable by them or by any highway authority) already formed upon, which buildings have not already been erected.

PART V.
—*cont.*

(3) It shall not be lawful to erect or bring forward in any such street any house or building or any part thereof or any addition to any house or building if the building line for such street has been disapproved by the Corporation or before the expiration of the one month aforesaid without their approval nor without the approval of the Corporation beyond or in front of the building line approved or prescribed by the Corporation and any person offending against this enactment shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

51 & 52 Vict.
c. 52.

(4) The provisions of section 3. of the Public Health (Buildings in Streets) Act 1888 shall not apply to any house or building erected or proposed to be erected on lands in respect of which a building line as aforesaid shall have been approved or prescribed by the Corporation.

(5) In the event of the Corporation requiring as a condition of their approval of any such plan the setting back of the building line shown on the plan to a greater distance from the centre of a new street than one-half of the width of the street and ten feet in addition or in the case of a street already formed to a greater distance from the centre of the street than the line at which buildings could be erected having regard to the provisions of the byelaws with respect to streets and buildings in force in the borough or of the Public Health (Buildings in Streets) Act 1888 the Corporation shall make compensation to the owner of any land lying between the said distance from the centre of the street and the building line as set back for any damage sustained by him by reason of his being unable to build upon such land.

(6) For the purposes of this section the surveyor shall by certificate under his hand at or before the time of the approval of the building line by the Corporation determine the centre of any street or intended street.

(7) The amount of any compensation payable under this section shall in default of agreement be determined by arbitration in accordance with the provisions of the Lands Clauses Acts.

(8) The provisions of this section shall not apply to (a) any street formed or proposed to be formed on land belonging to the gas company and held for the purposes of their undertaking or on other land upon which any such land abuts or (b) any building (not being a dwelling-house) railway or work constructed by or belonging to or which may hereafter be constructed by or belong to the London and North Eastern Railway Company in the exercise of their statutory powers or to any lands held or acquired or which may hereafter be held or acquired by the said railway company with the authority of Parliament so long as such building railway

work or land is used or held by the said railway company primarily for railway purposes.

PART V.
—cont.

47. For the purpose of preventing danger to pedestrians from traffic the Corporation may as respects roads (not being highways repairable by the inhabitants at large) adjacent to the entrances to or exits from any schools public baths public parks recreation grounds playing fields alley ways and passage ways exercise the like powers of placing fences rails and posts on the sides of any footways or carriageways of such roads as under section 149 of the Public Health Act 1875 are exerciseable by them as respects roads so repairable and the Corporation may from time to time repair renew maintain or remove any fences rails or posts so placed by them.

Power to place fences near school entrances &c.

38 & 39
Vict. c. 55.

48. For the protection of the gas company the following provisions shall unless otherwise agreed in writing between the Corporation and the gas company apply and have effect (that is to say):—

For protection of gas company.

(1) In this section “ apparatus ” means all or any mains pipes valves or other works belonging to the gas company:

(2) Whenever under the provisions of the section of this Act of which the marginal note is “ Stopping up and diversion of highways ” any highway or part of a highway in which any apparatus is for the time being laid or placed is stopped up or diverted the gas company shall be at liberty at their option—

(a) to remove such apparatus to and relay the same in the highway (if any) substituted for the highway so stopped up or diverted in such position as the Corporation may reasonably approve or in such other situation as the Corporation may reasonably approve; or

(b) to provide and lay in such substituted highway or other situation similar apparatus equally suitable in lieu of such existing apparatus; or

(c) to retain such apparatus in its existing position if and so long as they deem it necessary so to do for the purpose of continuing to furnish existing supplies of gas:

(3) Where any apparatus is retained under paragraph (c) of subsection (2) of this section the gas company shall continue to have and to be entitled to exercise all their existing rights of access thereto and of opening and breaking up the ground in which the same is laid or placed as if the highway had not been stopped up or diverted:

PART V.
—cont.

- (4) Any expenses reasonably incurred by the gas company in effecting any alteration of any apparatus under and in accordance with the provisions of this section (including the reasonable cost of and incidental to the cutting off of any apparatus from any other apparatus and the reinstatement of streets or roads and of and incidental to any other works or things rendered necessary in consequence of the alteration) or in providing and laying apparatus under paragraph (b) of subsection (2) of this section shall on demand be repaid to them by the Corporation and thereupon the existing apparatus in place of which any other apparatus is laid under the said paragraph (b) shall become the property of the Corporation:
- (5) If any difference shall arise between the Corporation and the gas company under this section such difference shall be determined by arbitration.

PART VI.

SEWERS DRAINS AND SANITARY PROVISIONS.

Improper
construction
or repair of
water-closet
or drain.

49.—(1) If a water-closet drain ventilation pipe or soil-pipe is so constructed or repaired as to be a nuisance or injurious or dangerous to health the person who undertook or executed such construction or repair shall unless he shows that such nuisance or injury or danger to health could not have been avoided by the exercise of reasonable care be liable to a penalty not exceeding twenty pounds.

(2) Provided that where a person is charged with an offence under this section he shall be entitled upon information duly laid by him to have any other person being his agent servant or workman whom he charges as the actual offender brought before the court at the time appointed for hearing the charge and if the person charged proves to the satisfaction of the court that he has used due diligence to prevent the commission of the offence and that the said other person committed the offence without his knowledge consent or connivance he shall be exempt from any penalty and the said other person may be summarily convicted of the offence.

Apportion-
ment to
frontagers of
expenses of
sewer
constructed
under public
highway.

50.—(1) Where the Corporation resolve to construct a sewer in a street or part of a street within the borough repairable by the inhabitants at large which has not been previously sewered and the resolution states that the construction of the sewer will in the opinion of the Corporation increase the value of premises fronting adjoining or abutting on such street or part of a street then subject to the section of this Act of which the marginal note is "Provisions applicable to the

last two preceding sections " the expenses incurred by the Corporation in constructing the sewer so far as they do not exceed the sum authorised by that section shall be apportioned by the Corporation on the premises fronting adjoining or abutting on the street or part of a street according to the frontages of the respective premises as existing at the date when the resolution becomes operative.

PART VI.
—cont.

(2) Such resolution as aforesaid shall not become operative unless and until notice thereof has been published in a local newspaper circulating in the borough but shall become operative as from the date of such publication. Copies of the newspaper containing the notice shall be sufficient evidence of the publication thereof.

(3) Nothing in this section shall authorise the apportionment of any sum on any land in contravention of any agreement between the Corporation and the owner of the land.

51.—(1) Where the Corporation have incurred expenses in constructing after the passing of this Act a length of sewer in or under land within the borough and that land has subsequently become a street (whether repairable by the inhabitants at large or not) then subject to the provisions of the next succeeding section of this Act the expenses so incurred so far as they do not exceed the sum authorised by that section shall be apportioned by the Corporation on the premises fronting adjoining or abutting on the street according to the frontages of the respective premises.

Apportionment to frontagers of expenses of construction of sewer before land became a street.

(2) Where on the construction of the length of sewer compensation became due to the owner of any land in on or over which the length of sewer was constructed in respect of the damage he sustained by reason of such construction and any sum was set off against such compensation on account of the value of land belonging to such owner having been enhanced by the construction of the length of sewer this section shall not apply to the length of sewer or to such part thereof as was constructed in on or over such land as aforesaid.

(3) Nothing in this section shall authorise the apportionment of any sum on any land in contravention of any agreement between the Corporation and the owner of the land.

52.—(1) The sum apportionable under either of the two last preceding sections of this Act shall not exceed the sum certified by the surveyor to be at the time the average cost per lineal yard of providing a sewer having an internal diameter of nine inches in a private street in the borough multiplied by the extent in lineal yards (as so certified) of the sewer or length of sewer in question.

Provisions applicable to the last two preceding sections.

PART VI.
—cont.

the meaning of the section of this Act of which the marginal note is "Apportionment to frontagers of expenses of sewer constructed under public highway" or as the case may be of the section of this Act of which the marginal note is "Apportionment to frontagers of expenses of construction of sewer before land became a street"; and

- (iii) that the disposal of such portion of the land was effected with the intention and for the purpose of the evasion of the payment of expenses under the said sections of this Act;

then the court shall order that such expenses shall be apportioned on the land which immediately before the date of such conveyance sale lease or disposal included the land so conveyed sold leased or disposed of and thereafter such expenses may be recovered from the owner of any part of that land on which a new building within the meaning of the last preceding section of this Act is erected and shall be a charge on any such part of that land and on all estates and interests therein to the same extent and in the same manner as any sum apportioned under either of the said sections of this Act may be recovered and is charged on the premises under the said last preceding section of this Act.

As to evasion
by owners of
private street
works
expenses.
55 & 56
Vict. c. 57.

54. If—

- (i) any owner of land fronting adjoining or abutting on a street within the meaning of the Private Street Works Act 1892 and situate in the borough conveys sells leases or otherwise disposes of the part or any portion of the part of that land which fronts adjoins or abuts on that street; and
- (ii) any expenses of works executed by the Corporation under the said Act of 1892 in or in relation to that street are apportioned on such part or portion of that land; and
- (iii) the Corporation are unable to recover such expenses in whole or in part from the person to whom such part or portion of that land was conveyed sold leased or disposed of or by the sale of such part or portion of that land; and
- (iv) a court of summary jurisdiction is satisfied that such conveyance sale lease or disposal was intended for the purpose of evading the payment of any expenses under the said Act of 1892;

then such expenses or so much thereof as has not been recovered by the Corporation may to such extent as the court may determine be recovered from that owner in the same manner as expenses of the execution of works under the said

Act of 1892 may be recovered as though he had not made such conveyance sale lease or disposal and as though the said amount of the said expenses had been apportioned on the land of that owner which before such conveyance sale lease or disposal was made fronted adjoined or abutted on such street.

55.—(1) The contractor engaged in or upon the construction or reconstruction of any work not being a work to which section 107 or section 108 of the Factories Act 1937 applies shall where practicable and if required by the Corporation provide to the reasonable satisfaction of the Corporation and until the completion of any such construction or reconstruction maintain such water or other closets and urinals in or in connection with such work as may be sufficient for the accommodation of the workmen employed. Sanitary conveniences for workmen.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

56.—(1) No dealer shall sell or expose for sale any second-hand furniture mattress bed-linen or similar articles if the same are to his knowledge infested with bugs or other vermin or if by taking reasonable precautions he could have known the same to be so infested. Prohibition of sale of verminous furniture &c.

(2) A dealer offending against the provisions of this section shall be liable to a penalty not exceeding five pounds.

(3) (a) The sanitary inspector may enter any premises in which second-hand furniture mattresses bed-linen or similar articles are sold or exposed for sale for the purposes of examining whether there be any contravention of the provisions of this section.

(b) Every person who refuses to permit the sanitary inspector to enter any premises or make any inspection which the sanitary inspector is authorised under the provisions of this section to enter or make or obstructs the sanitary inspector in the execution of his duty under such provisions shall be liable to a penalty not exceeding five pounds.

(4) In and for the purposes of this section "dealer" means any person (other than a pawnbroker duly licensed for that purpose) who trades or deals in any of the articles referred to in this section.

57. Section 82 of the Public Health Act 1936 in its application to the borough shall be extended so as to empower the Corporation to make byelaws prescribing the times and the days of the week during which trade refuse may be set fire to or burned in yards and gardens. Byelaws as to the burning of refuse.

PART VII.

SALE OF COKE COAL &C.

Amendment of
section 27 of
Weights and
Measures Act
1889 in its
application to
borough.
52 & 53
Vict. c. 21.

As to sale of
coal or coke
otherwise
than in sacks
from a vehicle.

58. As from the commencement of this section proviso (a) to section 27 (Power to require weighment of coal or vehicle) of the Weights and Measures Act 1889 in its application to the borough under Part VIII (Sale of Coke) of the Act of 1935 shall be read and have effect as if in that proviso the words "one mile" were substituted for the words "half a mile."

59.—(1) As from the commencement of this section any person selling or intending to sell or exposing for sale coal or coke from or on a vehicle otherwise than in sacks and not carrying on such vehicle a weighing instrument of a type approved by the Corporation stamped by an inspector of weights and measures shall sell at one time only the whole load of such coal or coke on such vehicle and shall be furnished with a ticket or note stating the gross tare and net weight of such load and shall produce such ticket or note to any inspector of weights and measures or other officer appointed for the purpose by the Corporation on demand.

(2) Any person who shall offend against the provisions of this section shall be liable to a penalty not exceeding five pounds.

(3) This section shall not apply to the delivery of coal or coke by the gas company to a customer or customers pursuant to an order or orders previously given by him or them to the gas company whether a weighing instrument is or is not carried on the vehicle used for such delivery.

Application
of this Part
of Act.

60. The provisions of this Part of this Act relating to coke shall apply also to any solid fuel derived from coal or of which coal or coke is a constituent as if it were coke.

PART VIII.

FINANCIAL PROVISIONS AND MISCELLANEOUS.

Power to
borrow.

61.—(1) The Corporation shall have power in addition and without prejudice to their powers of borrowing under the Act of 1933 from time to time to borrow without the consent of any sanctioning authority for and in connection with the payment of the costs charges and expenses referred to in the section of this Act of which the marginal note is "Costs of Act" the sum requisite for that purpose and they shall pay off all moneys so borrowed within five years from the passing of this Act.

(2) The provisions of Part IX (Borrowing) of the Act of 1933 so far as they are not inconsistent with the provisions of this Act shall extend and apply to the borrowing of money

under this section and to money so borrowed as if it were borrowed under the said Part IX and the period fixed by subsection (1) of this section for the repayment of any money borrowed under this section shall as respects that money be the fixed period for the purpose of the said Part IX.

PART VIII.
—cont.

(3) In the application of the said provisions of the Act of 1933 to the borrowing of money for the purpose of Part II (Trolley vehicles) of this Act the Minister of War Transport shall be the sanctioning authority.

62.—(1) Where the owner of any hereditament has agreed with the occupier thereof that the owner shall pay the general rate charged on such hereditament the owner shall be liable to pay to the Corporation so much of any payment in respect of rent received by him from the occupier as shall represent the proportion of rate included in such payment and so much of such payment may on proof of such agreement be recovered by the Corporation from the owner in the same manner and subject to the same conditions under and subject to which rates are recoverable from occupiers of rated hereditaments.

Recovery of
rates from
certain
owners.

The remedy of the Corporation under this section shall be in addition and without prejudice to their other remedies for the recovery of rates.

(2) For the purposes of this section the expression "owner" in relation to a hereditament means the person who is entitled to receive the rent payable in respect thereof.

(3) This section shall not apply to any hereditaments to which subsection (1) of section 11 of the Rating and Valuation Act 1925 applies by virtue of a resolution of the Corporation.

63.—(1) As from the commencement of this section the provisions of Part IV of the Public Health Acts Amendment Act 1890 shall in their application to the borough extend to any place kept or used for any boxing or wrestling entertainment as though such entertainment were of the like kind with public dancing and music.

Places used
for boxing or
wrestling
entertain-
ments to be
licensed.

53 & 54
Vict. c. 59.

(2) For the purposes of this section "boxing or wrestling entertainment" means any public contest or display of boxing or wrestling except such as may be provided or given—

(a) by travelling showmen at pleasure fairs;

(b) in premises licensed under the Theatres Act 1843 if and so long as the conditions attached to the licence under the said Act are complied with as though such contest or display were a stage play;

6 & 7 Vict.
c. 68.

(c) by bona fide associations clubs hospitals or societies which are not carried on for profit;

PART VIII:
—cont.

- (d) by members of the Boy Scouts Association or of any organisation formed by the Boy Scouts Association in pursuance of their charter; or
- (e) by any school.

Byelaws as
to pleasure
fairs.

64.—(1) The Corporation may from time to time make byelaws—

- (a) for regulating the hours during which pleasure fairs may be open to the public;
- (b) for securing safe and adequate means of ingress to and egress from the ground upon which any pleasure fair is held;
- (c) for the prevention and suppression of nuisances and for preserving sanitary conditions cleanliness order and public safety at any pleasure fair.

(2) In this section the expression “pleasure fair” means any entertainment which is run for profit and which consists of or includes any or all of the following whether or not in combination with any other forms of entertainment that is to say any travelling circus exhibition of human beings or performing animals merry-go-round roundabout switchback railway coconut shy hoop-la shooting gallery or swings or anything similar to any of the foregoing:

Provided that the said expression does not include any fair held by statute charter royal licence letters patent or ancient custom.

Maintenance
of graves in
burial grounds.
42 & 43
Vict. c. 31.

65.—(1) Subsection (3) of section 2 of the Public Health (Interments) Act 1879 shall be extended to enable the Corporation to maintain in perpetuity or for such period as they may determine a grave or grave space or monument in any burial ground cemetery or crematorium provided or maintained by them and to accept a sum of money from any person in consideration of such maintenance.

(2) The Corporation shall apply for the purposes of this section any sum of money received by them before the passing of this Act in consideration of such maintenance.

(3) Any such sum as is referred to in subsection (1) or subsection (2) of this section shall be either invested in statutory securities or used in the manner authorised by section 110 (Consolidated loans fund) or section 111 (Use of moneys forming part of sinking and other funds) of the Act of 1935 and the interest thereon shall be carried to and form part of the general rate fund and an amount equivalent to the aforesaid interest shall be applied in maintaining the grave grave space or monument in such a manner as the Corporation think fit.

66. A person other than an officer of the Corporation or a person or the servant of a person employed by the Corporation in or about any work in connection with the cemeteries burial grounds or crematoria belonging to the Corporation shall not except for the purpose of properly tending any grave pluck out or otherwise interfere with any flower plant shrub wreath ornament or other thing on any grave in a cemetery burial ground or crematorium belonging to the Corporation and any person offending against the provisions of this section shall be liable to a penalty not exceeding forty shillings.

67.—(1) As respects byelaws made under this Act the confirming authority for the purposes of section 250 of the Act of 1933 shall be—

Confirming
authority
for byelaws.

(a) in the case of byelaws made under the section of this Act of which the marginal note is " Byelaws as to pleasure fairs " the Secretary of State; and

(b) in all other cases the Minister.

(2) No byelaw affecting any area below high-water mark shall come into operation until the consent of the Minister of War Transport has been obtained Confirmation of any byelaws by a confirming authority shall be sufficient evidence that such consent has been given.

68.—(1) The provisions of this Act to which this section applies shall come into operation on but not until such date as may be fixed by a resolution of the Corporation of which date public notice shall be given by the Corporation by advertisement in one or more local newspapers circulating in the borough.

Commence-
ment of
certain
provisions
of this Act.

Every such advertisement shall also state the effect of the provisions to which it relates and the date specified therein as the date on which such provisions shall come into operation shall not be less than one month after the date of publication of the advertisement:

Provided that if the provision is one which requires the licensing or registration of any person or premises the application for the licence or registration may be made and determined before the provision comes into operation.

(2) A copy of a newspaper containing such advertisement shall be sufficient evidence of the publication of the advertisement.

(3) This section shall apply to the section of this Act of which the marginal note is " Places used for boxing or wrestling entertainments to be licensed " and to Part VII (Sale of coke coal &c.) of this Act.

PART VIII.
—cont.

(4) As respects any of the said provisions which requires the licensing or registration of persons carrying on any business or of premises used for any purpose it shall be lawful for any person who when such provision came into operation—

(a) was carrying on any such business or using any premises for any such purpose; and

(b) had made application in accordance with the provisions of this Act for such licence or registration as is required by this Act;

to continue to carry on such business and to use such premises for such purpose until such time as he has been informed of the decision with regard to his application and if the decision is adverse during such further time as is provided under subsection (6) of the section of this Act of which the marginal note is "As to appeals."

Restriction
on right to
prosecute.

69. Section 298 (Restriction on right to prosecute) of the Public Health Act 1936 shall apply to offences created by or under this Act as if they were offences created by or under that Act except that the said section shall not apply to those created by or under Part III (Electricity) and Part VII (Sale of coke coal &c.) or by or under the sections of this Act of which the marginal notes are respectively "Places used for boxing or wrestling entertainments to be licensed" and "Byelaws as to pleasure fairs."

As to appeals.

70.—(1) Any person aggrieved by any requirement refusal or other decision of the Corporation or of any officer thereof under Part V (Streets and buildings) or Part VI (Sewers drains and sanitary provisions) of this Act may except where otherwise expressly provided or when some other right of appeal is conferred by this Act appeal to a court of summary jurisdiction.

(2) The procedure upon any such appeal shall be by way of complaint for an order and the Summary Jurisdiction Acts shall apply to the proceedings.

(3) The time within which any such appeal may be brought shall except where otherwise expressly provided be twenty-one days from the date on which notice of the requirement refusal or decision was published or served upon the person desiring to appeal and for the purposes of this subsection the making of the complaint shall be deemed to be the bringing of the appeal.

(4) In any case in which such an appeal lies the document notifying the requirement refusal or decision in the matter shall state the right of appeal to a court of summary jurisdiction and the time within which such an appeal may be brought

unless these have already been stated in a notice to the person concerned informing him of his right to a hearing before the Corporation with regard to the same matter.

(5) Where a person aggrieved by any order determination or other decision of a court of summary jurisdiction under this Act is not by any other enactment authorised to appeal to a court of quarter sessions he may except where otherwise expressly provided appeal to such a court.

(6) Where any requirement refusal order determination or other decision against which a right of appeal is conferred by this Act involves the execution of any work or the taking of any action or makes it unlawful for any person to carry on any business which he was lawfully carrying on up to the time of such requirement refusal order determination or other decision or to use any premises for any purpose for which they were lawfully used up to such time—

- (a) no proceedings in respect of any failure to execute the work or take the action shall be taken;
- (b) the Corporation shall not execute such work or take such action; and
- (c) any such person may carry on such business and use such premises for such purpose;

until the time for appealing has expired or when an appeal is lodged until the appeal has been disposed of or withdrawn or fails for non-prosecution thereof.

(7) Where upon an appeal under this Act a court varies or reverses any requirement refusal or other decision of the Corporation effect shall be given to the order of the court and in particular any necessary consent certificate or other document shall be granted or issued and any necessary entry in any register shall be made.

71. When any compensation costs damages or expenses is or are by this Act or by any local Act or Order for the time being in force in the borough directed to be paid and the method for determining the amount thereof is not otherwise provided for such amount shall in case of dispute be ascertained in the manner provided by subsection (2) of section 278 of the Public Health Act 1936. Compensation how to be determined.

72. Where under this Act any question or dispute is to be referred to an arbitrator or to arbitration other than questions or disputes to which the provisions of the Lands Clauses Acts apply then unless other provision is made the reference shall be to a single arbitrator to be agreed upon between the parties to the question or dispute or in default of such agreement appointed on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid Application of Arbitration Acts.

PART VIII.
—cont.

the provisions of the Arbitration Acts 1889 to 1934 shall apply to any such arbitration.

Application
of provisions
of Public
Health Act
1936.

73.—(1) The sections of the Public Health Act 1936 hereinafter mentioned shall have effect as if they were re-enacted in this Act and in terms made applicable thereto (that is to say):—

Section 275 (Power of local authority to execute certain work on behalf of owners or occupiers);

Section 283 (Notices to be in writing; forms of notices &c.);

Section 284 (Authentication of documents);

Section 285 (Service of notices &c.);

Section 286 (Proof of resolutions &c.);

Section 293 (Recovery of expenses &c.);

Section 296 (Summary proceedings for offences);

Section 297 (Continuing offences and penalties);

Section 299 (Inclusion of several sums in one complaint &c.);

Section 304 (Judges and justices not to be disqualified by liability to rates);

Section 328 (Powers of Act to be cumulative).

(2) The sections of the Public Health Act 1936 hereinafter mentioned shall have effect as if they were re-enacted in this Act and in terms made applicable to Part V (Streets and buildings) and Part VI (Sewers drains and sanitary provisions) of this Act (that is to say):—

Section 277 (Power of councils to require information as to ownership of premises);

Section 287 (Power to enter premises);

Section 288 (Penalty for obstructing execution of Act);

Section 289 (Power to require occupier to permit works to be executed by owner);

Section 291 (Certain expenses recoverable from owners to be a charge on the premises; power to order payment by instalments);

Section 292 (Power to make a charge in respect of establishment expenses);

Section 295 (Power of local authority to grant charging orders);

Section 329 (Saving for certain provisions of the Land Charges Act 1925).

74. Subject to the provisions of this Act the following sections of the undermentioned Acts as amended by any subsequent enactment shall with any necessary modifications extend and apply for the purposes of this Act as if the same were re-enacted in this Act (namely):—

PART VIII.

—cont.

Application
of provisions
of local Acts.

The Act of 1896.

Section 204 (Saving for indictments &c.).

The Act of 1921.

Section 110 (Crown rights).

The Act of 1935.

Section 141 (Enquiries by Ministers).

Section 143 (Damages and charges to be settled by court).

Section 145 (Works below high-water mark not to be constructed without consent of Board of Trade).

75. Paragraph (d) of subsection (2) and subsection (4) of section 1 of the Emergency Powers (Defence) Act 1939 as amended by subsection (2) of section 1 of the Emergency Powers (Defence) Act 1940 shall have effect as if this Act had been passed before the commencement of the last-mentioned Act.

Application
of Emergency
Powers
(Defence) Acts
1939 and 1940.
3 & 4 Geo. 6.
c. 20.

76. For the protection of the gas company the following provisions shall unless otherwise agreed in writing between the Corporation and the gas company apply and have effect (that is to say):—

For further
protection of
gas company.

The provisions of the sections of this Act of which the marginal notes are—

“ Power of entry for substitution of electric lines ”;

“ Further powers as to entry upon premises ”;

“ Apportionment to frontagers of expenses of sewer constructed under public highway ”;

“ Apportionment to frontagers of expenses of construction of sewer before land became a street ”;

shall not apply to any premises (not being a dwelling-house and not being a showroom or office erected elsewhere than on land authorised to be used for the manufacture or storage of gas or the working up or storage of residual products) belonging to the gas company and held by them for the purposes of their undertaking.

PART VIII.
—cont.Saving for Town
and Country
Planning Acts.22 & 23 Geo. 5. c. 48.
6 & 7 Geo. 6. c. 29.
7 & 8 Geo. 6. c. 47.

77. The provisions of the Town and County Planning Acts 1932 and 1943 and the Town and County Planning Act 1944 and of any order or scheme made under those Acts or any enactment repealed by those Acts and for the time being in force shall apply to any development carried out under this Act as if such development were development for the purposes of those Acts.

Costs of Act.

78. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act or otherwise in relation thereto as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation in the first instance out of the general rate fund and general rate but ultimately if the Corporation think fit out of money to be borrowed under this Act for that purpose.

The SCHEDULE referred to in the foregoing Act.

NOTE.—References in this schedule to existing trolley vehicle routes otherwise than by number are to existing trolley vehicle routes authorised by the Act of 1935 along the whole or parts of the routes of the Corporation tramways and references to existing trolley vehicle routes by number are to the trolley vehicle routes authorised by that Act as numbered therein.

PART I.

DESCRIPTION OF EMERGENCY TROLLEY VEHICLE ROUTES.

(1)	(2)
No.	Description of route.
1	(1 mile 3.36 chains in length.) Commencing in Laygate Circus by a junction with the existing trolley vehicle route at that point passing thence along Laygate to its junction with Commercial Road thence along Commercial Road to its junction with Corstorphine Town thence along Corstorphine Town and Temple Town and terminating in South Eldon Street at the junction of that street with Temple Town by a junction with the existing trolley vehicle route at that point together with a turning point at the junction of Laygate and Commercial Road.
2	(5 furlongs 4 chains in length.) Commencing in Prince Edward Road East at a point approximately 90 yards west of the junction of Pine Avenue with that road by a junction at that point with the existing trolley vehicle Route No. 15 passing thence along Centenary Avenue and terminating at the junction of Centenary Avenue with Marsden Road together with a turning point in Marsden Road at the termination of the said route.

PART II.

NEW TROLLEY VEHICLE ROUTES.

(1)	(2)
No.	Description of route.
3	(1 furlong 1.35 chains in length.) Commencing at (and including) the traffic circus at the northern end of Lawe Road passing thence along Lawe Road to and terminating at its junction with Fort Street.
4	(2 furlongs 4.89 chains in length.) Commencing in Lawe Road at the termination of Route No. 3 hereinbefore described and passing thence along Fort Street to and terminating at its junction with Mile End Road.

(1)	(2)
No.	Description of route.
5	(1 furlong 3.23 chains in length.) Commencing in Mile End Road at the termination of Route No. 4 hereinbefore described and passing thence along Mile End Road to and terminating at its junction with Bath Street.
6	(3 furlongs 2.75 chains in length.) Commencing at the junction of Station Road with Coronation Street by a junction with the existing trolley vehicle route at that point and passing thence along Commercial Road to and terminating at its junction with Laygate by a junction with the emergency trolley vehicle route No. 1 described in Part I of the schedule to this Act at that point.
7	(3 furlongs 4.55 chains in length.) Commencing at the junction of Westoe Road with Imeary Street by a junction with the existing trolley vehicle route at that point and passing thence along Imeary Street to its junction with Chichester Road thence along Chichester Road to and terminating at Laygate by a junction with the existing trolley vehicle route at that point.
8	(1 furlong 1.13 chains in length.) Commencing at the junction of South Eldon Street with Dean Road by a junction with the existing trolley vehicle route at that point and passing thence along Dean Road to and terminating at its junction with Prince Edward Road West.
9	(3 furlongs 4.32 chains in length.) Commencing in Dean Road at the termination of Route No. 8 hereinbefore described and passing thence along Dean Road to and terminating at the entrance to the existing car shed of the Corporation by a junction with the existing trolley vehicle route at that point.
10	(2 furlongs 5.60 chains in length.) Commencing in Dean Road at the termination of Route No. 8 hereinbefore described and passing thence along Prince Edward Road West to and terminating at its junction with Stanhope Road by a junction with the existing trolley vehicle route at that point.
11	(3 furlongs 4.55 chains in length.) Commencing in Stanhope Road at the termination of Route No. 10 hereinbefore described and passing thence along Prince Edward Road to and terminating at its junction with Harton Lane.
12	(3 furlongs 2.72 chains in length.) Commencing in Harton Lane at the termination of Route No. 11 hereinbefore described and passing thence along Prince Edward Road to and terminating at its junction with King George Road by a junction with the existing trolley vehicle routes Nos. 7 and 15 at that point.
13	(2 furlongs 0.10 chain in length.) Commencing in Boldon Lane at its junction with Stanhope Road by a junction with the existing trolley vehicle routes at that point and passing thence along Boldon Lane to and terminating at its junction with Harton Lane.

(1)	(2)
No.	Description of route.
14	(6 furlongs 0.18 chain in length.) Commencing in Boldon Lane at the termination of Route No. 13 hereinbefore described and passing thence along Harton Lane to and terminating at its junction with Prince Edward Road.
15	(1 furlong 6.66 chains in length.) Commencing in Prince Edward Road at the termination of Route No. 14 hereinbefore described and passing thence along Harton Lane to and terminating at its junction with King George Road by a junction with the existing trolley vehicle route No. 7 at that point.
16	(4 furlongs 7.04 chains in length.) Commencing at the traffic circus at Horsley Hill and passing thence along Marsden Road to and terminating at its junction with Prince Edward Road East by a junction at that point with the existing trolley vehicle routes Nos. 14 and 15.
17	(2 furlongs 8.78 chains in length.) Commencing in Westoe Road at its junction with Horsley Hill Road by a junction with the existing trolley vehicle route at that point and passing thence along Horsley Hill Road to and terminating at its junction with Highfield Road.
18	(5 furlongs 3.10 chains in length.) Commencing in Horsley Hill Road at the termination of Route No. 17 hereinbefore described and passing thence along a road known or to be known as Highfield Road in part already and in part intended to be constructed which is numbered 21/40 on the map referred to in and forming part of the South Shields County Borough Town Planning Scheme No. 1 and terminating at its junction with a road or intended road known or to be known and hereinafter referred to as Cheviot Road in part already and in part intended to be constructed which road or intended road is numbered 2/40 on the said map.
19	(1 furlong 9.55 chains in length.) Commencing at the termination of Route No. 18 hereinbefore described and passing thence along Cheviot Road to and terminating at the traffic circus at Horsley Hill by a junction at that point with the emergency trolley vehicle route No. 2 described in Part I of the schedule to this Act.
20	(6 furlongs 6.81 chains in length.) Commencing in Mowbray Road at its junction with the road known or to be known as Tadema Road in part already and in part intended to be constructed which road is numbered 2/40 on the map referred to in and forming part of the said South Shields County Borough Town Planning Scheme No. 1 and passing thence along the said road or intended road to and terminating at its junction with Cheviot Road.
21	(1 furlong 0.60 chain in length.) Commencing in Sunderland Road at its junction with Grosvenor Road and passing thence along each side of the existing light railway of the Corporation in Sunderland Road to and terminating at the junction of that road with King George Road.

(1)	(2)
No.	Description of route.
22	(3 furlongs 3·94 chains in length.) Commencing in Sunderland Road at the termination of Route No. 21 hereinbefore described and passing thence along each side of the said existing light railway in King George Road to and terminating at the junction of that road with Harton Lane by a junction with the existing trolley vehicle route No. 7 at that point.
23	(4 furlongs 9·69 chains in length.) Commencing in King George Road at its junction with Prince Edward Road and passing thence along each side of the said existing light railway in King George Road to the termination thereof at the Ridgeway.
24	(5 furlongs 2·72 chains in length.) Commencing in Mowbray Road at its junction with Coast Road at the termination of the existing trolley vehicle route No. 5 passing thence along Mowbray Road to and terminating at its junction with Westoe Road by a junction with the existing trolley vehicle route at that point.

Printed by Sir NORMAN GIBB SCORGIE, C.V.O., C.B.E.,
Controller of His Majesty's Stationery Office
and
King's Printer of Acts of Parliament

To be purchased directly from H.M. STATIONERY OFFICE at the following addresses:
York House, Kingsway, London, W.C.2; 13a Castle Street, Edinburgh 2;
39-41 King Street, Manchester 2; 1 St. Andrew's Crescent, Cardiff;
80 Chichester Street, Belfast;
or through any bookseller

Price 1s. 6d. net

(P. 3427)